

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA**

In the matter of an Application for mandates in the nature of Writs of Certiorari and Mandamus in terms of Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka

**CA (Writ) Application No: 286/2014**

Fathima Asan Khan,  
(Nee Senadheerage Chandra Malkanthi),  
A4506, Samagipura, Viharagala,  
Suriyawewa.

**PETITIONER**

Vs.

1. Sri Lanka Mahaweli Authority,  
500, T.B. Jayah Mawatha, Colombo 10.
2. Resident Project Manager.
3. Deputy Resident Project Manager.
4. Gamini, Divisional Manager.

2<sup>nd</sup> – 4<sup>th</sup> Respondents at  
Office of the Divisional Manager, Suriyawewa.

5. Ms. Niluka,  
Office of the Unit Manager, Baddewewa.
6. Ariyaratne,  
Land Officer, Suriyawewa.
7. W. W. Sujith Prasanna,  
A4506, Samagipura, Viharagala,  
Suriyawewa.

**RESPONDENTS**

**Before:** Mahinda Samayawardhena, J  
Arjuna Obeyesekere, J

**Counsel:** Chandana Wijesuriya with Sandun Dissanayake for the Petitioner  
  
Manohara Jayasinghe, Senior State Counsel for the 1<sup>st</sup> – 6<sup>th</sup> Respondents

Shantha Jayawardena with Niranjana Arulpragasam and Kavindu Geeganage for the 7<sup>th</sup> Respondent

**Argued on:** 9<sup>th</sup> September 2020

**Written Submissions:** Tendered on behalf of the Petitioner on 7<sup>th</sup> November 2018  
  
Tendered on behalf of the 1<sup>st</sup> – 6<sup>th</sup> Respondents on 21<sup>st</sup> August 2018  
  
Tendered on behalf of the 7<sup>th</sup> Respondent on 20<sup>th</sup> October 2018 and 21<sup>st</sup> November 2019

**Decided on:** 16<sup>th</sup> November 2020

**Arjuna Obeyesekere, J**

This application relates to a land situated in Suriyawewa and the ensuing dispute between the Petitioner and her elder brother, the 7<sup>th</sup> Respondent to obtain a permit for the said land.

The Petitioner claims that the 1<sup>st</sup> Respondent, the Mahaweli Authority of Sri Lanka handed over the said land depicted as Lot No. 4506 in Final Plan No. 4/119 in extent of 40P, vested in the 1<sup>st</sup> Respondent, together with Lot No. 4523 to her mother, N. G. Nandawathie in 1986. This claim has been contradicted by the 1<sup>st</sup> Respondent who states that Nandawathie was in possession of the said lands much earlier, and that the said lands have not been handed over to Nandawathie in terms of the law.<sup>1</sup> Even though the 1<sup>st</sup> Respondent has not issued a permit in respect of the said lands to Nandawathie, there is no dispute between the parties that the said land has been occupied and developed by Nandawathie.

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<sup>1</sup> Vide letter marked '7R11' issued by the Unit Manager of the 1<sup>st</sup> Respondent.

The Petitioner states that at the request of Nandawathie, a permit has been issued to another daughter of Nandawathie in respect of Lot No. 4523. The Petitioner states further that she lived with Nandawathie in a house built on Lot No. 4506, and that with the income she earned from her foreign employment, she built two houses on the said land.

The Petitioner states that an inquiry was held in 2003 to regularize the unauthorised possession of Nandawathie. The Petitioner states further that although a Unit Manager of the 1<sup>st</sup> Respondent had issued a letter dated 19<sup>th</sup> August 2010 marked 'P2' confirming that the Petitioner has been selected as the person in whose name a permit could be issued, so far a permit in terms of the Land Development Ordinance has not been issued to her.<sup>2</sup> Although the 1<sup>st</sup> Respondent has admitted that the Petitioner was selected to receive a permit, no explanation has been given as to why a permit was not issued in the name of the Petitioner.

The Petitioner states that the 7<sup>th</sup> Respondent had made representations to the 1<sup>st</sup> Respondent to have the selection of the Petitioner cancelled and to have the permit issued under his name. The Petitioner too had made a complaint in 2011 to the Minister in charge of the 1<sup>st</sup> Respondent about the delay in issuing her a permit. Pursuant to this, the Resident Manager, Suriyawewa of the 1<sup>st</sup> Respondent, by his letter dated 24<sup>th</sup> April 2012 marked 'P4' had informed the Petitioner that as the Petitioner has failed to come into occupation of the said land, a fresh inquiry will be held to determine entitlement to the said land based on the actual possession of the land. Although the Petitioner admits that an inquiry was held, she states that she was not informed of the outcome of the inquiry.

The 1<sup>st</sup> Respondent had thereafter issued the 7<sup>th</sup> Respondent a permit marked '7R13' in respect of half the extent of Lot No. 4506, i.e. 20 perches. Aggrieved by this decision of the 1<sup>st</sup> Respondent, the Petitioner has filed this application, seeking *inter alia* the following relief:

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<sup>2</sup> 'P2' has not been issued on a letter head of the 1<sup>st</sup> Respondent, and has been issued many years after the inquiry held in 2003.

- (a) A Writ of Certiorari to quash the decision of the 1<sup>st</sup> – 5<sup>th</sup> Respondents to issue the 7<sup>th</sup> Respondent a permit under the Land Development Ordinance;
- (b) A Writ of Mandamus directing the 1<sup>st</sup> – 5<sup>th</sup> Respondents to issue a permit to the Petitioner.

Although the Petitioner claims that the decision to issue the 7<sup>th</sup> Respondent a permit is *ultra vires* the powers of the 1<sup>st</sup> Respondent, it cannot be disputed that the 1<sup>st</sup> Respondent is possessed of the power to issue a permit in respect of lands vested in it. The question that arises for determination in this application is whether the decision of the 1<sup>st</sup> Respondent to grant the 7<sup>th</sup> Respondent a permit in respect of half of the said land even though the Petitioner has been selected in 2003 to receive a permit in respect of the entirety of the land, is reasonable and rational.

Prior to determining the entitlement of the 7<sup>th</sup> Respondent, the 1<sup>st</sup> Respondent has conducted an inquiry where the statements of the Petitioner, 7<sup>th</sup> Respondent and Nandawathie had been recorded. It had transpired at the said inquiry that the Petitioner as well as the 7<sup>th</sup> Respondent were living on the said land, having built houses of their own. In fact, in her statement marked '1R6', Nandawathie had stated that the Petitioner had only built one house, and not two, as claimed by the Petitioner. The 1<sup>st</sup> Respondent had accorded due recognition to the fact that both the Petitioner and the 7<sup>th</sup> Respondent were in possession of the said land, and decided to allocate half share of the property to each of them.

In support of his entitlement, the 7<sup>th</sup> Respondent has stated that he too lived in the old house built by their mother on the said land. He states that Nandawathie informally divided the land into two 20 perch plots, and permitted the two children to build a house on the plots given to each of them. The 7<sup>th</sup> Respondent states that the Petitioner only built the house bearing assessment No. 66 and states that the house bearing assessment No. 67 was built by him. He claims that he has lived in the said house since 1998, except the periods when he was working outside Sri Lanka.

The 7<sup>th</sup> Respondent states that he was employed outside Sri Lanka during the period February 2002 – July 2004.<sup>3</sup> It is during this period – i.e. 2003 - that an inquiry had been conducted to determine the entitlement to the said land. The 7<sup>th</sup> Respondent claims that the Petitioner had participated at the inquiry and had her name inserted as the recipient of the entire land by suppressing the fact that by then the land had been divided into two plots.

The 7<sup>th</sup> Respondent has claimed that his name has been inserted on the Electoral Register under the above address for a long period. This is disputed by the Petitioner who claims that in 2005, while she was working outside Sri Lanka, the 7<sup>th</sup> Respondent had got his name inserted on the electoral register in respect of one of the houses. However, as admitted by the Petitioner, this has been done with the consent of their mother. The Petitioner admits that the 7<sup>th</sup> Respondent had come into occupation of the said house in 2009, once again with the consent of their mother.

The Petitioner claims that she obtained electricity for both houses under her name in 2005. While no documentary proof of this fact has been presented to this Court, the 7<sup>th</sup> Respondent has stated that the connection in respect of the house bearing assessment No. 67 was obtained in the name of Nandawathie, and that the Petitioner surreptitiously had it changed to her name in 2011. The 7<sup>th</sup> Respondent states that the Ceylon Electricity Board had however inserted his name for the connection in respect of this house.<sup>4</sup>

Having carefully considered the above factual matters, I take the view that the decision of the 1<sup>st</sup> Respondent that the 7<sup>th</sup> Respondent is also in possession of the land is supported by the evidence that was available to the 1<sup>st</sup> Respondent. It is not a decision which is irrational or unreasonable. If I may refer to the words used by Lord Diplock to describe 'irrationality', it is not a decision *which is so outrageous in its defiance of logic or of accepted moral standards that no sensible person who had applied his mind to the question to be decided could have arrived at it.*<sup>5</sup> Hence, I see no legal basis to grant the Writ of Certiorari prayed for by the Petitioner.

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<sup>3</sup> Vide extracts of the passport of the 7<sup>th</sup> Respondent, marked '7R1'.

<sup>4</sup> Vide documents marked '7R5' – '7R9'.

<sup>5</sup> Council of Civil Service Unions vs Minister for the Civil Service [(1985) AC 374]

There are two other matters that I wish to advert to.

The first is the allegation by the Petitioner that the 7<sup>th</sup> Respondent has already been given a land in Mayurapura and is therefore not eligible to receive the permit '**7R13**'. The 7<sup>th</sup> Respondent has admitted that his wife has received a permit in respect of a paddy land in extent of 2 ½ acres, but has denied that he or his wife has received a permit in respect of any high land, although they use a high land adjacent to the paddy land for their cultivation purposes. The Petitioner has however annexed to her counter affidavit a letter sent by Nandawathie who states that the wife of the 7<sup>th</sup> Respondent has been given a high land, as well. This judgment shall not prevent the 1<sup>st</sup> Respondent from inquiring into the said allegation of the Petitioner and taking appropriate steps in terms of the law.

The second matter that I wish to advert to is the admission of the 1<sup>st</sup> Respondent in its Statement of Objections that it has decided to issue the Petitioner a permit in respect of 20 perches out of Lot No. 4506 – vide '**1R7**'. The 1<sup>st</sup> Respondent shall take immediate steps to issue to the Petitioner a permit in terms of the Land Development Ordinance, in respect of the balance portion of Lot No. 4506, if that has not been done already, and provided the Petitioner is still entitled to such a permit.

Subject to the above, this application is dismissed, without costs.

**Judge of the Court of Appeal**

**Mahinda Samayawardhena, J**

I agree

**Judge of the Court of Appeal**